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Case Number: 24STCV31938 Hearing Date: September 9, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 17

TENTATIVE RULING

STEPHON WATFORD

vs.

PROMISE ASSISTED LIVING, LLC

Case

No.: 24STCV31938

Hearing Date: September 9, 2026

Aparicio's

motion for summary judgment is DENIED. Aparicio's motion for summary adjudication is DENIED.

Azevedo's

motion for summary judgment is DENIED. Azevedo's motion for summary adjudication is DENIED.

Restum's

motion for summary judgment is DENIED. Restum's motion for summary adjudication is DENIED.

On 12/4/2024,

Plaintiff Stephon Watford (Plaintiff) initiated this action. On 11/3/2025, Plaintiff filed a first amended complaint against Promise Assisted Living, LLC, Promise Hospice, Inc., Zulficar Gregory Restum, D'arolyn Azevedo, and Roxana Aparicio alleging: (1) whistleblower retaliation; (2) retaliation and discrimination; (3) wrongful termination; and (4) defamation.

On 2/26/2026,

Defendant Roxana Aparicio moved for summary judgment or, in the alternative, summary adjudication of Plaintiff's Complaint.

On 3/16/2026,

Defendant D'arolyn Azevedo moved for summary judgment or, in the alternative, summary adjudication of Plaintiff's Complaint.

On 4/1/2026,

Defendant Gregory Restum moved for summary judgment or, in the alternative, summary adjudication of Plaintiff's Complaint.

For ease, the

Court has consolidated its analysis into a single ruling.

Discussion

I.

Defendant

Roxana Aparicio

Defendant

argues that summary judgment is appropriate because Plaintiff's claim for defamation against her fails as a matter of law because: (1) Aparicio did not publish a defamatory statement about Plaintiff to a third party; (2) the challenged content is true; (3) the challenged content is not reasonably susceptible to a defamatory meaning; (4) Plaintiff consented to the content he challenges; (5) the challenged content occurred in a workplace disciplinary action form that is privileged under Civil Code section 47(c); (6) Defendant had a compelling and reasonable belief in the

accuracy of the workplace disciplinary action form she signed; (7) Aparicio did not act with malice; (8) the challenged content is absolutely privileged by law under Workplace and Institutions Code, section 15630; and (9) there is no evidence of harm to Plaintiff caused by her.

To state a cause of action for defamation based on a particular statement, a Plaintiff must show (1) falsity, (2) publication, (3) unprivileged status, and (4) harm. (Grenier v. Taylor (2015) 234 Cal.App.4th 471, 480.)

Here, in support, Aparicio submitted evidence including that:

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Aparicio
did not publish a statement about Plaintiff to a third party. (UF, 6-9, 11.)

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Aparicio
did not prepare the Disciplinary Action Form, she placed only her own signature on it. (UF, 6, 7.) She did not share it with anyone. (UF, 9.)

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Aparicio's
two-to-three-minute conversation with Plaintiff conveying PAL's concern about his personal cellphone use occurred exclusively between Aparicio and Plaintiff and involved no third-party. (UF, 5.)

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The
undisputed facts show there was no statement made by Aparicio about Plaintiff that was untrue. (UF, 6-12.)

Taken together, Aparicio's evidence supports a reasonable inference that her signature on the Disciplinary Action Form, a form she undisputedly neither kept nor gave to anyone, fails to constitute publication of anything to anyone. Moreover, Aparicio's evidence supports a reasonable inference that she made no false statements about Plaintiff. Assuming Plaintiff contests he used his personal cellphone while working, Aparicio simply conveyed management's view to Plaintiff that he spent time on his cellphone when he should have been caring for residents. (UF, 4, 5.) She signed the Disciplinary Action Form confirming Plaintiff was counseled about it. (UF, 7, 8.)

Accordingly, the burden shifts to Plaintiff to disclose a triable issue of material fact.

In opposition, Plaintiff

argues that Aparicio can be said to have published the statement, despite that she neither retained nor personally distributed a copy, because she made the statement to Restum, who in turn prepared the form based on that. (SS 8; see Kelly v. General Telephone Co. (1982) 136 Cal.App.3d 278, 284.) Plaintiff further argues that while Aparicio “attempts to minimize the challenged statements as routine workplace counseling...the accusation necessarily implies that he was chronically distracted, neglected his responsibilities, and could not be trusted to provide attentive care.” (Opp., 7: 25-8:8.) Finally, Plaintiff submitted evidence that the comments were made with malice, and notes the inconsistent explanations provided for who actually observed Plaintiff on his cell phone. (SS 8.)

Taken

together, Plaintiff’s evidence supports a reasonable inference that the statement was published, was defamatory, and was made with malice, making the question of whether the common interest privilege applies a question of fact.

Based on the

foregoing, Aparicio’s motion for summary judgment is denied. Aparicio’s motion for summary adjudication is similarly denied.

II.

Defendant

D’arolyn Azevedo

Defendant

argues that summary judgment is appropriate because Plaintiff’s claim for defamation against her fails as a matter of law because: (1) Azevedo did not publish a defamatory statement about Plaintiff to a third party; (2) Plaintiff consented to the content he challenges; (3) the challenged content occurred in a workplace disciplinary action form that is privileged under Civil Code section 47(c); (4) Azevedo had a compelling and reasonable belief in the accuracy of the workplace disciplinary action form she signed; (5) Azevedo did not act with malice; (6) the challenged content is absolutely privileged by law under Workplace and Institutions Code, section 15630; and (7) there is no evidence of harm to

Plaintiff caused by her.

To state a cause of action for defamation based on a particular statement, a Plaintiff must show (1) falsity, (2) publication, (3) unprivileged status, and (4) harm. (Grenier v. Taylor (2015) 234 Cal.App.4th 471, 480.)

Here, in support, Azevedo submitted evidence including that:

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Azevedo

did not publish a statement about Plaintiff to a third party. (UF, 6-11.)

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-Azevedo

did not prepare the Disciplinary Action Form. (UF, 6, 7.) She did not share it with anyone. (UF, 9.)

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Azevedo

signed the Disciplinary Action Form after it was prepared by Restum and she took no further action. (UF, 7-9.)

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The form

was then placed in Plaintiff's personnel file after Azevedo signed it. (Restum Dec., ¶ 12.)

Taken together, Azevedo's evidence supports a reasonable inference that her signature on the Disciplinary Action Form, a form she undisputedly neither kept nor gave to anyone, fails to constitute publication of anything to anyone.

Accordingly, the burden shifts to Plaintiff to disclose a triable issue of material fact.

Here, Plaintiff set

forth substantially similar arguments and evidence as to those set forth above as to Defendant Aparicio, (i.e., that the statements included in Restum's report were provided by Azevedo and that Azevedo then

reviewed and approved those statements; the statements are defamatory; and the statements were made with malice.)

For

the same reasons set forth above, the Court finds a triable issue as to the defamation cause of action.

Based on the

foregoing, Azevedo's motion for summary judgment is denied.

III.

Defendant

Gregory Restum

Defendant

argues that summary judgment is appropriate because Plaintiff's claim for defamation against him fails as a matter of law because: (1) Restum consented to the content he challenges; (2) the challenged content occurred in a workplace disciplinary action form that is privileged under Civil Code section 47(c); (3) Restum had a compelling and reasonable belief in the accuracy of the workplace disciplinary action form; (4) Restum did not act with malice; (5) the challenged content is absolutely privileged by law under Workplace and Institutions Code, section 15630; and (6) there is no evidence of harm to Plaintiff caused by him.

To state a cause of action for defamation based on a particular statement, a Plaintiff must show (1) falsity, (2) publication, (3) unprivileged status, and (4) harm. (*Grenier v. Taylor* (2015) 234 Cal.App.4th 471, 480.)

Communications made without malice on subjects of mutual interest are privileged and non-actionable. (*Brown v. Kelly Broadcasting Co.* (1989) 48 Cal.3d 711, 725; CACI No. 1723; Cal. Civ. Code § 47(c).) A published statement is privileged if made "without malice, to a person interested therein, (1) by one who is also interested, or (2) by one who stands in such a relation to the person interested as to afford a reasonable ground for supposing the motive for the communication to be innocent, or (3) who is requested by the person interested to give the information." (Cal. Civ. Code § 47(c).)

Here, in support, Restum submitted evidence including that:

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His

statements were work-related communications concerning employee conduct and disciplinary action made in the course and scope of Restum's management of PAL. (UF, 1, 2, 4, 9, 11, 13.)

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Restum

wrote the Disciplinary Action Forms and mandated reporting to APS and Child Support Services believing them to be accurate. (UF, 6-18.)

The courts consistently hold that the common law privilege under section 47(c) applies to workplace communications concerning employee conduct, internal investigations, and disciplinary decisions because employers and employees share a mutual interest in addressing misconduct. (See, e.g., *McGrory v. Applied Signal Technology, Inc.* (2013) 212 Cal.App.4th 1510, 1538; *King v. United Parcel Service, Inc.* (2007) 152 Cal.App.4th 426, 440 ("an employer and its employees have a common interest in protecting the workplace from abuse.")) As the Court of Appeal explained in *McGrory*, the common interest privilege "applies to statements by management and coworkers to other coworkers explaining why an employer disciplined an employee." (*McGrory*, 212 Cal.App.4th at p. 1538.)

Taken together, Restum's evidence supports a reasonable inference that his statements fall within the scope of the common interest privilege. (Cal. Civ. Code § 47(c).) Moreover, Restum's submitted evidence supports a reasonable inference that he is absolutely privileged as a mandatory reporter in California. (WIC §§ 15630, subd. (a) (providing Act) and 15634 ("No care custodian ... who reports a known or suspected instance of abuse of an elder or dependent adult shall be civilly or criminally liable for any report required or authorized by this article"); see also *Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253-261 (analyzing the Act's extension of absolute immunity to care custodian's conduct).) WIC section 15634 specifically protects mandated reporters from liability for conduct "integrally related to a report of suspected elder abuse." (*Santos v. Kisco Senior Living, LLC* (2016) 1 Cal.App.5th 862, 866 (holding mandated reporter immune under Act for actions related to report of suspected elder abuse).)

Accordingly, the burden shifts to Plaintiff to disclose a triable

issue of material fact.

In opposition, Plaintiff argues that Restum's motion turns entirely on his own declaration of his conduct and state of mind, and that it is contradicted by his own deposition testimony and discovery responses, as well as the testimony of others including Azevedo and Aparicio. (Agadzhyanov Decl., ¶ 2, Ex. A [Restum Depo. Vol. I] at 57:25–58:18; Ex. C [Aparicio Depo.] at 29:11–23; Ex. D [Azevedo Depo.] at 32:21–25.) Plaintiff also submitted evidence from Caregiver Lipsey Rojas that contradicts Restum's versions of events. (RSS 12.) Plaintiff also submitted evidence that Restum published the accusation to Child Support Services for an unrelated reason (i.e., garnishment of wages), and submitted three governmental certificates of no records for the subject APS report and Restum's own admissions of ill will.

Taken together, the Court finds triable issues as to this cause of action.

Based on the foregoing, Restum's motion for summary judgment is denied.

It is so ordered.

Dated:
September , 2026

Hon. Jon R. Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.